

THIS UNDERTAKING is made

202

THE CORNWALL COUNCIL (1)

And

PETER FREDERICK JOHNS (2)

And

CAROLE JOHNS (3)

And

DAVID EDWARD JOHNS (4)

And

SUSAN HELEN JOHNS (5)

**PLANNING OBLIGATION BY UNDERTAKING under
Section 106 of the Town and Country Planning Act 1990**

Relating to Land at Reeves Close, Porthleven, TR13 9PB

BETWEEN

- (1) **THE CORNWALL COUNCIL** of County Hall Treyew Road Truro TR1 3AY (**"the Council"**)
- (2) **PETER FREDERICK JOHNS** of Trewennick Bungalow, Carnmeal, Breage, Helston TR13 9NL (**"the First Owner"**)
- (3) **CAROLE JOHNS** of Trewennick Bungalow, Carnmeal, Breage, Helston TR13 9NL (**"the Second Owner"**)
- (4) **DAVID EDWARD JOHNS** of Rosperran, Perran Downs, Goldsithney, Penzance TR20 9HQ (**"the Third Owner"**)
- (5) **SUSAN HELEN JOHNS** of Rosperran, Perran Downs, Goldsithney, Penzance TR20 9HQ (**"the Fourth Owner"**)

WHEREAS

1. The Council is the Local Planning Authority for the purposes of this Deed for the area within which the land described in the First Schedule (**"the Land"**) is situated and by whom the obligations contained in this Deed are enforceable
2. The Owners are interested as freehold owners in the Land which is registered at the Land Registry with title absolute under title number CL102812
3. The Owners have applied to the Council for planning permission for the Development on the Land under reference number PA25/06277 (**"the Planning Permission"**)
4. By a notice of refusal dated 27th October 2025 the Council refused planning permission

for the reasons set out therein (“the Refusal”) and the Owner has appealed to the Secretary of State against the Refusal and enters into this obligation to the intent that any objections of the Council to the grant of planning permission are overcome.

NOW THIS DEED is made in pursuance of Section 106 of the 1990 Act and contains planning obligations and is a planning obligation for the purposes of that Section and **WITNESSES** as follows:

1. **DEFINITIONS AND INTERPRETATION**

It is agreed and declared as follows for the purposes of this Deed the following expressions shall have the following meanings:

1.1 **Definitions**

“1990 Act” means the Town and Country Planning Act 1990 (as amended)

“1999 Act” means The Contracts (Rights of Third Parties) Act 1999 as may be amended from time to time

"Application" means the application for outline planning permission to carry out the Development and which was validated by the Council on 1st September 2025 and allocated planning reference PA25/06277

"Commencement of Development" means the date on which any material operation (as defined in Section 56(4) of the 1990 Act) forming part of the Development begins to be carried out other than (for the purposes of this Deed and for no other purpose):

- (a) operations consisting of site clearance;
- (b) demolition work;

- (c) archaeological investigations;
 - (d) investigations for the purpose of assessing ground conditions;
 - (e) remedial work in respect of any contamination or other adverse ground conditions;
 - (f) diversion and laying of services;
 - (g) erection of any temporary means of enclosure;
 - (h) the temporary display of site notices or advertisements; and
- “Commence” “Commencement of Development” and “Commence Development” shall be construed accordingly

"County" means the County of Cornwall

"Development" means the outline Planning Application with all matters reserved for the proposed erection of a self-build Dwelling pursuant to the Planning Permission

"Dwelling" means any dwelling permitted pursuant to the Planning Permission and the term “Dwellings” shall mean all of them

“Expert” means a person having appropriate qualifications and local knowledge and experience in the matters in dispute as agreed by the Relevant Parties or failing agreement such person as is nominated by the President for the time being of the Royal Institution of Chartered Surveyors on the application of the Relevant Parties

‘Index’ means the percentage rise in the United Kingdom Consumer Price Index when the index figure published in the September before the day of rent review is compared with the published index figure in the preceding September but if the basis for calculation of the Consumer Price Index has changed and any method of calculation between the new and the old figures is officially published that method shall be used for the purposes of comparison under this provision

"Interest" means 4% above the Base-lending rate of the National Westminster Bank

Plc from time to time or such other bank as the Council may notify the Owner

“Land” means the Land referred to in the First Schedule and Recitals 1 and 2 hereof

"Occupation" means occupation for the purposes of residential use permitted by the Planning Permission but not including occupation by personnel engaged in construction, fitting out or decoration or occupation for marketing or display or occupation in relation to security operations and the terms "Occupied" "Occupy" and "Occupier" shall be interpreted accordingly

"Off-Site Public Open Space Contribution" means the sum of Twelve Thousand and Eight One Pounds and Fifty Six Pence (£12,081.56) towards the provision of Off Site Open Space

"Off-Site Public Open Space" means the replacement open space or enhanced existing open space within the local area, to compensate for the loss of the existing open space on the Land

“Owners” means the First Owner, the Second Owner, the Third Owner and the Fourth Owner jointly and severally as the case may be

“Plan” means the plan referred to in the First Schedule and annexed hereto

“Planning Permission” means the planning permission granted by the Secretary of State pursuant to the appeal against the refusal of the Application

“Secretary of State” means the Secretary of State for Levelling Up, Housing and Communities from time to time appointed and includes any successor in function

“Section 73 Permission” means any planning permission granted pursuant to Section 73 of the 1990 Act which varies and/or removes the condition imposed on the Planning Permission subject to which any such planning permission is granted

1.2 Interpretation

- 1.2.1 The expressions “the Council” and “the Owners “ shall include their successors in title and assigns and any person(s) or body corporate deriving title through or under them
- 1.2.2 Words importing the masculine gender only shall include all other genders and vice versa
- 1.2.3 Words importing the singular shall include the plural and vice versa
- 1.2.4 Words importing persons shall include companies and corporations and vice versa
- 1.2.5 Where any party consists of two or more persons companies or corporations the Deed expressed to be made by that party and the conditions and provisions contained in this Deed shall be deemed to have been made jointly and severally by the persons named as that party
- 1.2.6 Save where a contrary intention is expressed a reference herein to a clause or Schedule shall be deemed to be a reference to a clause or Schedule of this Deed and reference to a sub-clause paragraph or Part shall be deemed to be a reference to a sub clause or paragraph or Part of the clause or Schedule in which such reference appears
- 1.2.7 All references to an Act of Parliament shall include any modification, extension or re-enactment of that Act for the time being in force and shall include all instruments, orders, plans, regulations, permissions and directions for the time being made, issued or given under that Act or deriving validity from it
- 1.2.8 The clause and paragraph headings herein are for ease of reference only and shall not affect the interpretation of this Deed

2. STATUTORY PROVISIONS

- 2.1 This Deed is made pursuant to Section 106 of the 1990 Act Section 111 of the Local Government Act 1972 and Section 1 of the Localism Act 2011 and all other enabling powers and enactments which may be relevant for the purpose of giving validity hereto or facilitating the enforcement of the obligations herein contained with the intent to bind the Owner's interest in the Land and to the intent that the obligations on the part of the Owner herein contained falling within the provisions of Section 106 of the 1990 Act shall be planning obligations for the purposes of Section 106 of the 1990 Act and are enforceable by the Council as local planning authority in accordance therewith but subject as hereinafter provided
- 2.2 No person shall be liable for breach of a covenant contained in this Deed after he shall have parted with all interest in the Land or the part in respect of which such breach occurs but without prejudice to liability for any subsisting breach of covenants prior to parting with such interest
- 2.3 This Deed shall take effect from the date hereof PROVIDED THAT if the Planning Permission is revoked or expires by the effluxion of time then this Deed shall cease to have effect provided always that at the time of the said revocation no development has begun within the meaning of Section 56 of the 1990 Act;
- 2.4 The provisions of the 1999 Act shall not apply to this Deed and no third party shall have any rights to enforce the terms of this Deed
- 2.5 Insofar as any clause or clauses of this Deed are found (for whatever reason) to be invalid, illegal or unenforceable, then such invalidity, illegality or unenforceability shall not affect the validity or enforceability of the remaining provisions of this Deed.
- 2.6 In the event the Council shall at any time grant a Section 73 Permission after the date

of this Deed:

- (i) obligations in this Deed will relate to and bind any and all such Section 73 Permission;
- (ii) the definitions of Application, Development and Planning Permission shall include reference to any such subsequent planning applications for the Section 73 Permission, the development permitted by the Section 73 Permission and the Section 73 Permission itself and this Deed shall hereafter take effect and be read and construed accordingly;

PROVIDED THAT

- (iii) nothing in this clause will fetter the discretion of the Council in determining any planning application for a Section 73 Permission and the appropriate planning obligations required in connection with the determination of any such planning application and any such further planning obligation or amendment by deed in connection with any Section 73 Permission in the event the Council considers it necessary.

3. COVENANTS

The Owners undertake to the Council to fulfil the obligations and restrictions specified in this Deed

4. OWNERS' FURTHER AGREEMENT

The Owners' further agree as follows:

- 4.1 To supply to the Council (within 21 days of the Council's written request to do so) such information as the Council within its reasonable discretion considers that it requires in order to determine whether the terms and conditions of this Deed are being observed

5. REGISTRATION

The parties hereby consent to the registration of this Deed as a Local Land Charge by the Council

6. NOTICES

Any notice consent or approval required to be given under this Deed to any party to this Deed shall be in writing and shall be delivered personally or sent by pre-paid first class post to the address of the party aforesaid or such other address for service as shall have been previously notified by the party to the other parties

7. SETTLEMENT OF DISPUTES

7.1 Any dispute arising out of the provisions of this Deed shall be referred to the Expert for the determination of that dispute PROVIDED THAT the provisions of this clause shall be without prejudice to the right of any party to seek the resolution of any matter relating to the Deed by the courts and / or in accordance with Section 106(6) of the 1990 Act

7.2 The Expert shall be appointed jointly by the Relevant Parties who are in dispute

7.3 The decision of the Expert shall be final and binding upon the Relevant Parties and subject to the following provisions:-

- (a) the charges and expenses of the Expert shall be borne equally between the Relevant Parties who are in dispute unless the Expert shall otherwise direct;
- (b) the Expert shall give the Relevant Parties who are in dispute an opportunity to make representations and counter representations to him before making his decision;

- (c) the Expert shall make his decision within the range of any representations made by the Relevant Parties who are in dispute themselves;
- (d) where there is a dispute as to the amount of any contribution the Owner shall pay its estimate of such contribution to the Council at the time specified in this Deed and shall pay any difference between that figure and the amount determined by the Expert within 28 days of the Expert's decision together with Interest thereon calculated (in accordance with this Deed) from the date the payment was required until the date it is made

8. JURISDICTION

This Deed is governed by and interpreted in accordance with the law of England and Wales and where there is a conflict between the two the laws of England shall prevail

IN WITNESS whereof the parties hereto have executed this Deed on the day and year first before written

THE FIRST SCHEDULE

("the Land")

ALL THAT piece or parcel of land known as the Land at Reeves Close Cornwall **ALL OF WHICH** said land is shown for identification purposes only edged with a red line on the Plan and which is registered at HM Land Registry with title number CL102812

THE SECOND SCHEDULE

("the Obligations and Restrictions")

PART 1 – GENERAL PROVISIONS

1 GENERAL

The Owners undertake to the Council as follows:

1.1 NOTICE OF COMMENCEMENT

No Development shall Commence until the Owner has served notice on the Council clearly addressed and marked for the attention of the Service Director – Planning and Housing for the Council confirming the date for the Commencement of Development

1.2 OFF SITE PUBLIC OPEN SPACE CONTRIBUTION

To pay the Off Site Public Open Space Contribution prior to the Commencement of the Development (which contribution shall be increased in line with the percentage increase in the Index from the date of this Deed until the date of payment.

SIGNED as a DEED by Peter Frederick Johns
In the presence of:

Signature

Signature (Witness)

Print Name:

Address: 'SUNCLIFF'

2 CLAREMONT TERRACE,
PORTHELVEN, CORNWALL TR13 9ST

Occupation: EX POLICE OFFICER (30 YEARS)
DEVON & CORNWALL

SIGNED as a DEED by Carole Johns
In the presence of:

Signature

Signature (Witness)

Print Name:

Address: 'SUNCLIFF'

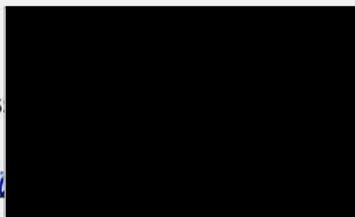
2 CLAREMONT TERRACE,
PORTHELVEN, CORNWALL TR13 9ST

Occupation: EX POLICE OFFICER (30 YEARS)
DEVON & CORNWALL

SIGNED as a DEED by David Edward Johns
In the presence of:



Signature (Witness)



Print Name: Vincent 07

Address: 'SUNCLIFF'

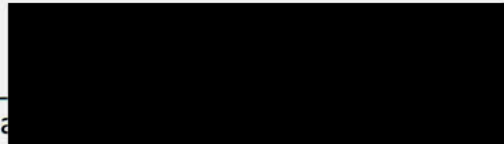
2 CLAREMONT TERRACE,

PORTHKEVEN, CORNWALL TR13 9ST

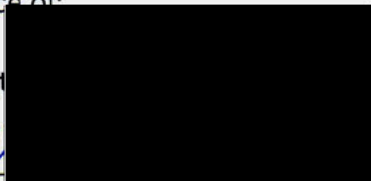
Occupation: EX POLICE OFFICER (30 YEARS)
DEVON & CORNWALL.

SIGNED as a DEED by Susan Helen Johns
In the presence of:

Signature



Signature (Witness)



Print Name: V

Address: 'SUNCLIFF'

2 CLAREMONT TERRACE,

PORTHKEVEN, CORNWALL TR13 9ST

Occupation: EX POLICE OFFICER (30 YEARS)
DEVON & CORNWALL.